



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

March 24, 2025

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 15980
(SIXTH REVISION)

EXPIRATION DATE: 2027-08-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Windward Aviation Inc
Kahului, HI
FAA Certificate Number: WVXL810T (Part 133)
WVXA810T (Part 135)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain hazardous materials by 14 CFR Part 133 cargo-only aircraft (Rotorcraft External Load Operations) transporting hazardous materials attached to or suspended from an aircraft, and 14 CFR Part 135 operations, as applicable, in remote areas of the U.S. only, without being subject to hazard communication requirements, quantity limitations, and certain loading and stowage requirements. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
 - d. This special permit does not grant the authority to use foreign controlled airspace or airports outside the United States.
 - e. This special permit does not waive any FAA airworthiness requirements or the need to obtain other required FAA authorizations.

Tracking Number: 2024104711

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.200, 172.300, and 172.400 in that shipping papers, marking, and labeling requirements are waived; § 175.30(a)(1) in that oily rags are forbidden for transportation aboard cargo aircraft, § 175.30 in that the requirement to inspect shipping papers, marking and labelling are waived, and in that the inspection of the package or overpack by the operator of the aircraft is waived for Part 133 operations, § 173.27 in that general requirements by air are waived; Part 173 in that certain specification packaging requirements are waived; § 175.33 in that the shipping paper and pilot notification requirements are waived; and § 175.75 in that alternative stowage is authorized.
5. BASIS: This special permit is based on the application of Windward Aviation Inc dated October 16, 2024, submitted in accordance with § 107.105, and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
1,1,12- Tetraflouroethane <i>or</i> Refrigerant gas R 134a	2.2	UN3159	N/A
Acetylene, dissolved	2.1	UN1001	N/A
Adhesives	3	UN1133	I, II, or III
Aerosoles, flammable (<i>each not exceeding 1 L capacity</i>)	2.1	UN1950	N/A
Air, compressed	2.2	UN1002	N/A
Batteries, wet, filled with acid, <i>electric storage</i>	8	UN2794	N/A
Batteries, wet, filled with alkali, <i>electric storage</i>	8	UN2795	N/A
Batteries, wet, non-spillable, <i>electric storage</i>	8	UN2800	N/A
Battery fluid, acid	8	UN2796	II

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Battery fluid, alkali	8	UN2797	II
Battery-powered vehicle <i>or</i> Battery powered equipment	9	UN3171	N/A
Butane <i>see also</i> Petroleum gases, liquified	2.1	UN1011	N/A
Dangerous goods in machinery <i>or</i> Dangerous goods in apparatus	9	UN3363	N/A
Diesel fuel	3	UN1202	III
Engines, internal combustion, <i>flammable gas powered</i>	9	UN3529	N/A
Engines, internal combustion, <i>flammable liquid powered</i>	9	UN3528	N/A
Engine, internal combustion <i>or</i> Machinery, internal combustion	9	UN3530	N/A
Engine, internal combustion, flammable gas powered <i>or</i> Machinery, internal combustion, flammable gas powered	2.1	UN3529	N/A
Engine, internal combustion, flammable liquid powered <i>or</i> Machinery, internal combustion, flammable liquid powered	3	UN3528	N/A
Fire extinguishers containing compressed or liquified gas	9	UN3530	N/A
Flammable liquids, n.o.s.	3	UN1993	III
Fuel, aviation, turbine engine	3	UN1863	I, II, or III
Gasoline	3	UN1203	II

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Hydrochloric acid	8	UN1789	II, or III
Kerosene	3	UN1223	III
Life-saving appliances, self inflating	9	UN2990	N/A
Lighters <i>containing flammable gas</i>	2.1	UN1057	N/A
Lighter refills <i>containing flammable gas not exceeding 4 fluid ounces (7.22 cubic inches) and 65 grams of flammable gas</i>	2.1	UN1057	N/A
Lithium ion batteries	9	UN3480	N/A
Lithium ion batteries contained in equipment*	9	UN3481	N/A
Lithium ion batteries packed with equipment*	9	UN3481	N/A
Lithium metal batteries, contained in equipment*	9	UN3091	N/A
Lithium metal batteries, packed with equipment	9	UN3091	N/A
Methanol	3	UN1230	II
Nitrogen, compressed	2.2	UN1066	N/A
Oxygen, compressed	2.2	UN1072	N/A
Paint <i>including paint, lacquer, enamel, stain, shellac solutions, varnish polish, liquid filler, and liquid lacquer base</i>	3	UN1263	III
Paint related material <i>including paint thinning, drying, removing, or reducing compound</i>	3	UN1263	III
Paint, flammable, corrosive <i>including paint, lacquer, enamel, stain, stain shellac, varnish,</i>	3	UN3469	II or III

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
<i>polish, liquid filler, and liquid lacquer base</i>			
Paint, corrosive, flammable <i>including paint, lacquer, enamel, stain, stain shellac, varnish, polish, liquid filler, and liquid lacquer base</i>	8	UN3470	II
Pesticides, liquid, toxic n.o.s.	6.1	UN2902	III
Petroleum distillates, n.o.s. <i>or</i> Petroleum products, n.o.s.	3	UN1268	I, II, or III
Propane <i>see also</i> Petroleum gases, liquified	2.1	UN1978	N/A
Rags, oily	4.2	UN1856	III
Receptacle, small, containing gas or gas cartridges (flammable) without release device, not refillable and not exceeding 1L capacity	2.1	UN2037	N/A
Receptacle, small, containing gas or gas cartridges (nonflammable) without release device, not refillable and not exceeding 1L capacity	2.2	UN2037	N/A
Receptacle, small, containing gas or gas cartridges (oxidizing) without release device, not refillable and not exceeding 1L capacity	2.2	UN2037	N/A
Refrigerant gas R404A	2.2	UN3337	N/A
Refrigerant gas, n.o.s.	2.2	UN1078	N/A
Refrigerating machines containing non-flammable, non-toxic liquified gas or ammonia solutions	2.2	UN2857	N/A
Self-defense spray, non-pressurized	9	NA3334	III

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Vehicle, flammable liquid powered <i>or</i> flammable gas powered	9	UN3166	N/A

*A lithium battery, including those packed with or contained in equipment, with a mass exceeding 35 kg may not be transported under the terms of this special permit unless the offeror (shipper) holds an approval in accordance with § 172.102(c)(2), Special Provision A54.

7. SAFETY CONTROL MEASURES:

- a. Prescribed packaging is the manufacturer's original packaging or a packaging of equal or greater strength and integrity. Compatibility and effectiveness of all packaging must, at a minimum, meet the requirements of 49 CFR 173.24.
- b. Aerosols and compressed gases must be secured in an upright position with protective caps and/or covers installed to prevent any unwanted discharge and be secured against movement incidental to transportation.
- c. Batteries (Other than Lithium Batteries): All batteries packed in equipment must be packed in a manner that prevents accidental activation or dangerous evolution of heat. Spare batteries or batteries packed with equipment must have their terminals insulated or protected to prevent short circuits and prevent a dangerous evolution of heat.
- d. Lithium Cell and Batteries: All lithium cells and batteries (including those packed with equipment or contained in equipment) must be packed in such a manner as to prevent short circuits, including movement that could lead to short circuits. The batteries must be equipped with an effective means to prevent dangerous reverse current flow (e.g., diodes, fuses) if a battery contains cells or a series of cells that are connected in parallel. Spare cells and batteries must be separated from other metallic objects by being packed in a sturdy plastic bag. Battery-powered equipment must be packaged in a manner that prevents accidental activation. Additionally, each lithium cell and battery must be of a type proven to meet the criteria in Part III, sub-section 38.3 of the UN Manual of Tests and Criteria (IBR; see § 171.7).
- e. Compressed Gas: Compressed gases must be packaged and conform to Subpart G of Part 173. The cylinders must be secured in such a manner that prevents the cylinder from movement during transportation. The cylinder neck/valve shall be protected by the use of safety caps or collars. At no time shall the safety caps or collars be used as a lifting point. The cylinder must be inspected for leakage, corrosion, denting, bulging, gouging,

and fire damage. Inspection of the valve, valve protection, and around and inside the footing for corrosion and foreign materials must be conducted. If a cylinder fails any part of the visual inspection it may not be transported until repaired or replaced.

f. Compressed oxygen must be transported in accordance with § 173.302(f).

g. Dry Ice: Carbon dioxide, solid (dry ice), must be packed in packaging designed and constructed to permit the release of carbon dioxide gas to prevent a buildup of pressure that could rupture the packaging.

h. Spontaneously Combustible Materials - Division 4.2 materials must be transported in sealed containers to prevent any spontaneous combustion.

i. Liquid fueled or gasoline powered equipment may be filled to not more than 80% of their capacity to allow for expansion due to altitude changes.

j. Compatibility of Cargo: Hazardous materials that might react dangerously with one another may not be placed next to each other or in a position that would allow a dangerous interaction in the event of leakage. Segregation Table in § 175.78 shall be used.

k. Alternative pilot-in-command notification procedures for § 175.33, may be established subject to the written approval of the FAA Office of Hazardous Materials Safety. Information may be submitted by email: 9-ash-axh-ch-and-operators-info@faa.gov.

8. SPECIAL PROVISIONS:

a. All packages must be blocked and braced to prevent movement.

b. Materials transported by external load must comply with the safety controls specified in this special permit.

c. This special permit does not grant the authority to use foreign controlled airspace or airports outside the United States.

d. Operations under the terms of this special permit are only authorized to be conducted in remote areas of the U.S.

e. The marking requirements of 49 CFR 172.301(c) are waived.

f. The requirements for shipping papers are waived for other than Class 1 materials.

- g. Each outer packaging must be properly marked and labeled for the hazardous materials contained within.
 - h. The safe operational weight limit of the aircraft may not be exceeded.
 - i. This special permit does not waive any FAA airworthiness requirements or the need to obtain other required FAA authorizations.
- 9. MODES OF TRANSPORTATION AUTHORIZED: Cargo-only aircraft and rotorcraft external load operations .
- 10. OPERATIONAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport materials covered by this special permit.
 - a. Authorized aircraft: Aircraft used under this special permit must be authorized as part of an FAA 14 CFR Part 133 or Part 135 Operating Certificate.
 - b. Operations manual: FAA 14 CFR Part 133 or Part 135 operations must be conducted in accordance with conditions and limitations specified in the certificate holder's FAA-approved Rotorcraft Load Combination Flight Manual (RLCFM) and Hazardous Material Safety Mitigation Plan.
 - c. Authorized persons aboard aircraft: No person may be carried on the aircraft other than as authorized by 14 CFR 133.35. Training or qualification of a new crewmember will not take place during the execution of this special permit.
 - d. Pilot requirements: Each pilot of an aircraft being operated under this special permit must have received formal training on the requirements of 49 CFR Parts 171-178 that are applicable to his/her duties and be thoroughly familiar with the specific requirements of this special permit.
- 11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) — “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. **REPORTING REQUIREMENTS:** Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BB/TG